IN THE SUPREME COURT OF INDIA

BAIL & CUSTODIAL JURISPRUDENCE JURISDICTION

(Division Bench (2 Judges))

CASE NUMBER: SLP (Crl.) No. 5191 of 2021 **CNR: SCIN010051912021**

REPORTABLE CITATION: (2022) 10 SCC 51 DATE: July 11, 2022

CORAM: Hon'ble Sanjay Kishan Kaul & M.M. Sundresh, JJ.

Satender Kumar Antil v. Central Bureau of Investigation & Another

Satender Kumar Antil ...PETITIONER(S)

VERSUS

Central Bureau of Investigation & Another ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973, Prevention of Money Laundering Act, 2002 | Sections: Section 41 CrPC

Landmark ruling laying down comprehensive categorization of offences (Categories A to D) and mandating grant of bail/release on appearance without custody if the accused cooperated during investigation. If an accused cooperated during police investigation and was not arrested before the chargesheet was filed, the court should grant bail or release them on personal bond without sending them to jail.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

When an accused is not arrested during investigation and has cooperated with the investigating agency, on filing of the charge sheet under Section 170 CrPC, the court must issue summons or bailable warrant in the first instance. Accused persons under Category A offences (punishable up to 7 years) are entitled to be released on bail/bonds without mechanical custodial remand.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Comprehensive Bail Guidelines Affirmed (Outcome: Directions Issued)

Precedential Authority: Good Law (Binding Precedent)

LEXGUARD CRYPTOGRAPHIC REGISTERED SEAL • STATUTORY JUDICIAL ARCHIVE

`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`